

Legal Ethics

Because legal assistants and paralegals are directly and indirectly affected by rules of professional behavior, we will examine the rules governing the conduct of lawyers. As such, we will review the authority of the courts regarding the practice of law, the role of the state bar, sanctions for misconduct, and the influence of the American Bar Association, among other associations.

Legal ethics covers contacts with employers/employees, clients, co-workers, the court, court personnel, and the general public. Legal ethics includes the unauthorized practice of law, ethical standards, rules of conduct, and confidentiality.

Video series - [Regulation of the Legal Profession](#)- Law Shelf Media

So, let's start by looking at legal ethics from the perspective of our American legal system, which is known as an "adversarial system."

Adversarial System

The U.S. legal system is referred to as an *adversarial system* because it is structured around a contest between opposing parties, each presenting their case before a neutral judge or jury. In this framework, the prosecution and the defense in a criminal case (or plaintiff and defendant in civil cases) are responsible for investigating the facts, gathering evidence, and advocating for their respective positions. The belief underlying this system is that truth and justice are most likely to emerge when each side has the opportunity to fully present and challenge the evidence and arguments put forth by the other.

This adversarial model is rooted in the principle of fairness and the protection of individual rights, particularly those enshrined in the Constitution, such as the right to counsel, the right to confront one's accuser, and the presumption of innocence. Judges in our system act as impartial arbiters, ensuring the rules of evidence and procedure are followed, and do not actively investigate the case themselves, unlike in the inquisitorial systems used in some other countries. The adversarial approach reflects a deep commitment to procedural justice, emphasizing the roles of advocacy, due process, and an independent judiciary.

In contrast to the U.S. adversarial system, many other countries—particularly those with civil law traditions, such as France or Germany—use an *inquisitorial system*, where judges play a far more active role in investigating the case. In these systems, the judge is not just a passive referee but a central figure in uncovering the truth. They lead the investigation, question witnesses directly, and often supervise the gathering of evidence. The trial is less of a battle between opposing parties and more of a collaborative effort to determine the facts and reach a just outcome. Lawyers still represent the parties, but their roles are more limited compared to the U.S. model.

This distinction reflects different philosophical underpinnings: the inquisitorial system prioritizes a comprehensive and state-directed search for truth, while the U.S. adversarial system emphasizes the protection of individual rights through procedural fairness and vigorous advocacy. Both systems aim to achieve justice, but they do so through fundamentally different methods of legal reasoning and courtroom dynamics.

The inquisitorial system's structure significantly influences the ethical responsibilities of legal professionals, particularly in how they approach their roles and duties. Because judges in inquisitorial systems lead the investigation and are charged with actively seeking the truth, the ethical obligations of lawyers are more focused on assisting the court in this fact-finding mission, rather than solely advocating for a client's interests. This means that lawyers are generally expected to be more cooperative and less combative, prioritizing the administration of justice over strategic maneuvering.

In contrast to the adversarial system, where ethical rules emphasize zealous representation, client confidentiality, and vigorous cross-examination, legal ethics in inquisitorial systems stress honesty with the court and a duty to help uncover the truth—even if doing so might not directly benefit the client. For example, a defense lawyer in an inquisitorial system might have a stronger ethical obligation to disclose exculpatory (that tending to prove guilt) or relevant information, even if it's potentially damaging to their case. Overall, legal ethics in inquisitorial systems are shaped by a collaborative rather than confrontational legal culture, and they reinforce the lawyer's role as a participant in a judicial process guided more by impartial truth-seeking than adversarial competition. The rest of this section will focus on legal ethics in our adversarial system.

Regulation of Attorneys

In the United States, the regulation of attorneys is a state-based system, meaning each state establishes its own rules for licensing, overseeing, and disciplining lawyers. While the American Bar Association (ABA) plays an influential role nationally, it does not have regulatory authority over attorneys. Instead, the ABA develops model rules—such as the *Model Rules of Professional Conduct*—which serve as templates that individual states can adopt, adapt, or reject. These model rules help promote consistency in ethical standards across jurisdictions, but ultimate authority rests with each state. The ABA is a voluntary association that advocates and lobbies on various issues impacting the legal field at both the national and state levels. Attorneys can choose to become members of the ABA or not- it has no impact on their ability to practice law. In fact, only about 24% of all attorneys in the U.S. are members of the ABA.

Maryland

In Maryland, attorney regulation is governed primarily by the Supreme Court of Maryland (formerly known as the Court of Appeals). This court has exclusive authority over attorney licensing and discipline. It adopts and enforces the Maryland Attorneys' Rules of Professional Conduct (MARPC), which are based largely on the ABA Model Rules but include state-specific modifications.

The Maryland State Bar Association (MSBA), while a prominent organization that offers continuing legal education, networking, and support services for attorneys, is not a regulatory body and, like the ABA, membership in the MSBA is voluntary. The MSBA does not license lawyers or discipline them. Instead, disciplinary functions are carried out by the Attorney Grievance Commission of Maryland (commonly referred to as “Bar Counsel”), which investigates complaints of attorney misconduct. When necessary, disciplinary cases are brought before the Supreme Court of Maryland, which has final say in imposing sanctions such as reprimand, suspension or disbarment.

In summary, attorney regulation in the U.S. is decentralized and state-driven, with the ABA serving an advisory role at most, and in Maryland, the Supreme Court of Maryland and the Attorney Grievance Commission oversee attorney licensing and discipline, while the MSBA focuses on professional development rather than enforcement.

Paralegals

Paralegals and other legal support staff are unregulated in most states. There is a trend toward establishing paralegal limited licensing in some states, but for now, most states have no regulation of the paralegal profession, including Maryland. That means- anyone can obtain a job as a paralegal. There are no required licenses, education, training, etc. However, most law firms and other legal organizations, require individuals hired as paralegals or similar positions to have a college degree (at least an associate’s degree) or a certificate in paralegal or legal studies from an accredited college or university. In addition, there are no set professional rules of conduct for paralegals. As paralegals work under the direction of an attorney, the attorney is responsible for the work of the paralegal and is responsible for ethical violations committed by the paralegal. In effect, the paralegal is expected to follow the same rules of professional conduct as the attorney, with the added “rule” of not engaging in the unauthorized practice of law (UPL). We will discuss UPL later in the section.

There are some national paralegal organizations that, similar to the ABA, provide guidance on rules of professional conduct for paralegals. The most prominent are the National Federation of Paralegal Association (NFPA) and the National Association of Legal Assistants (NALA). Both NFPA and NALA, among others, provide for independent certification of paralegals through a comprehensive examination process and required continuing legal education. Most paralegals seeking certification under NFPA or NALA, have already completed a paralegal studies or legal studies education at the associate’s or bachelor’s level. Certification through NFPA or NALA is voluntary and not required to be a paralegal.

Maryland Rules of Professional Conduct

The Maryland Rules of Professional Conduct for attorneys are a set of ethical guidelines that govern the professional behavior of lawyers practicing in Maryland. These rules are adopted and enforced by the Supreme Court of Maryland, and they define the minimum standards of conduct required of attorneys in their professional capacity. The Maryland Rules of Professional Conduct ensures that

attorneys uphold integrity, competence, and fairness in their practice, and that they act in a manner that promotes public confidence in the legal system.

The Maryland Rules of Professional Conduct for attorneys are largely based on the American Bar Association's Model Rules of Professional Conduct, but they include Maryland-specific modifications to reflect the state's legal culture and policy priorities. The rules cover a wide range of topics, including:

- Competence and diligence (e.g., providing competent legal representation)
- Confidentiality of client information
- Conflicts of interest
- Duties to the court and to third parties
- Responsibilities regarding non-lawyer assistants
- Advertising and solicitation
- Safekeeping client property, especially with regard to client funds

Violation of these rules can lead to disciplinary action by the Attorney Grievance Commission of Maryland, which investigates complaints and prosecutes serious violations. Sanctions can include reprimands, suspension, or even disbarment, depending on the severity of the misconduct. For Maryland lawyers, the Maryland Rules of Professional Conduct are not merely aspirational—they are binding obligations that reflect both ethical and legal standards for the profession.

Now we will look deeper into some of the Maryland Rules of Professional Conduct and how they impact attorneys, paralegals and others in the practice of law.

Attorney- Client Relationship

The main aspect of the practice of law is the attorney-client relationship. It is the foundation of the legal practice. In this regard, much of the Maryland Rules of Professional Conduct for attorneys focuses around this relationship.

At the core of the attorney-client relationship is the duty of loyalty, competence, and confidentiality. Attorneys must represent their clients zealously within the bounds of the law and must avoid conflicts of interest that could compromise their ability to provide independent and effective representation (Md. Rule 19-301.7). They must also maintain client confidences under Md. Rule 19-301.6, which prohibits the disclosure of information relating to the representation of a client unless the client gives informed consent, the disclosure is impliedly authorized, or specific exceptions apply (e.g., to prevent certain crimes).

Attorneys are required to communicate effectively with clients (Md. Rule 19-301.4), keeping them informed about the status of their matters and explaining issues sufficiently to allow clients to make informed decisions. In truth many complaints against attorneys by their clients revolve around Md. Rule 19-301.4 and the failure of attorneys to keep their clients informed. Rule 19-301.1 demands competence, which encompasses legal knowledge, skill, thoroughness, and preparation

necessary for the representation. Moreover, Maryland Rule 19-301.3 requires diligence—an attorney must act with reasonable promptness and pursue a client’s case with dedication.

Duties as Counselor

In the role of a counselor (Md. Rule 19-302.1), an attorney provides candid advice, not just on legal matters but also considering moral, economic, social, and political factors that may be relevant to the client and their matter. While the ultimate decision rests with the client, the attorney should offer honest assessments and may advise clients to seek a lawful course of action even if it's not the most aggressive or confrontational. Importantly, while respecting the client’s decisions, a lawyer should not be merely a "mouthpiece" but rather a trusted advisor guiding the client toward informed and ethical choices.

Duties as Advocate

As an advocate, an attorney must represent clients ethically and vigorously within the framework of the legal system. Maryland Rule 19-303.1 prohibits bringing or defending proceedings unless there is a basis in law and fact for doing so that is not frivolous. In fact, lawyers can be sanctioned for bringing or defending cases in bad faith when they know there is no legal basis for doing so. Lawyers must be truthful to the court under Md. Rule 19-303.3, which mandates candor, including not knowingly making false statements of fact or law, or failing to disclose controlling legal authority. And, when an attorney does make or allow a false statement to be made in court, they must take proactive measures to correct it. Maryland Rule 19-303.4 outlines the fairness lawyers must observe in litigation, including not unlawfully obstructing access to evidence or falsifying documents.

Confidentiality

The ethical duty of confidentiality is a broad obligation imposed on attorneys by professional conduct rules—such as the ABA Model Rules of Professional Conduct, particularly Rule 1.6 and Maryland Rule 19-301.6. This duty requires lawyers to not reveal any information relating to the representation of a client unless the client gives informed consent, the disclosure is impliedly authorized, or one of the narrow exceptions applies (like preventing a crime or fraud).

This rule applies regardless of the source of the information (not just what the client tells the attorney) and continues even after the attorney-client relationship ends. The purpose of this rule is to build trust between lawyer and client, encouraging full and frank disclosure from the client.

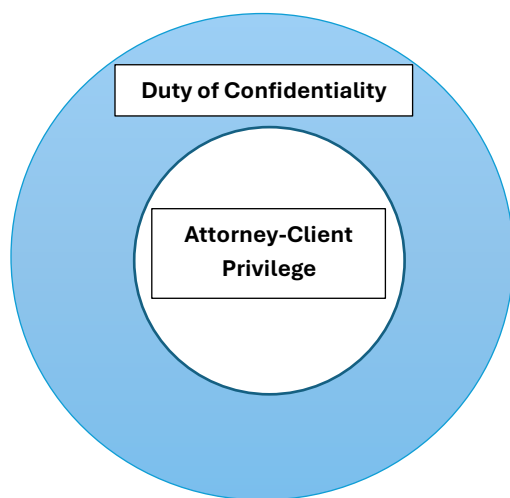
Example of Duty of Confidentiality

Attorney Lisa represents a client, Tom, in a personal injury lawsuit. During the representation, Tom casually mentions during a phone call that he once committed insurance fraud several years ago—an act entirely unrelated to his current legal case. Lisa is shocked but makes no record of the comment, and it has no bearing on Tom’s current lawsuit.

Even though Tom's statement has nothing to do with the current case, and even if the conversation wasn't specifically about legal advice, Lisa is still ethically bound to keep that information confidential. This is because the duty of confidentiality under MARPC Rule 19-301.6 applies to all information related to the representation, regardless of its source or relevance to the legal matter. Lisa may not disclose Tom's comment to anyone without his informed consent or unless an exception (such as preventing a future crime) applies.

Attorney-Client Privilege

The attorney-client privilege is a subset of the ethical duty of confidentiality. While the ethical duty of confidentiality is the larger, overarching duty (the blue circle and everything in it); the attorney-client privilege is a smaller subset (the white inner circle) of this.



Attorney-client privilege is an evidentiary rule that protects communications between a client and their attorney made for the purpose of seeking legal advice. To fall under attorney-client privilege there must be 1) a statement; 2) between the attorney and client (no unnecessary third parties can be present); 3) given in confidence; and 4) made for the purpose of seeking legal advice.

Whereas the duty of confidentiality covers ALL information no matter the source, no matter where or when made, attorney-client privilege covers a smaller subset, and ALL four parameters must be met for it to apply. All privileged communications are confidential, but not all confidential information is privileged. The privilege, however, like any privilege can be waived by the client. And, the privilege can be lost if one of the four elements above are missing, such as having an unnecessary third party in the meeting where the statement was made.

Example of Attorney-Client Privilege

Client Sarah meets with her attorney, James, in a private office to discuss her potential liability in a breach of contract case. She discloses specific facts and asks for legal advice on how to proceed. No one else is present in the room. This communication is protected by attorney-client privilege because it meets **ALL four criteria**:

1. A statement was made;
2. Between an attorney and client;
3. In confidence (no unnecessary third parties were present); AND
4. For the purpose of seeking legal advice.

Therefore, James cannot be compelled to disclose the contents of that conversation in court, and Sarah retains the right to waive the privilege if she chooses. If, however, Sarah had included a friend or unrelated third party in the meeting, the privilege would likely be lost.

Work Product Doctrine

The work product doctrine is a rule in civil procedure (Md. Rule 2-402 and Federal Rule of Civil Procedure 26(b)(3)) that protects materials prepared in anticipation of litigation from disclosure to the opposing party. Work product includes documents, notes, legal theories, mental impressions, and other materials created by attorneys or their agents. Some work product can be discovered if the opposing party shows a substantial need and can't obtain the equivalent without undue hardship—except for core mental impressions, which are almost always protected. The work product doctrine encourages attorneys to prepare thoroughly for trial without fear of exposing strategy.

While not based in ethics, the work product doctrine complements the duty of confidentiality by further shielding the attorney's thoughts and strategy. Unlike the duty of confidentiality or attorney-client privilege, which focus more on communications, the work product doctrine focuses on litigation preparation.

Client Perjury

Attorneys, as officers of the court, owe a duty of candor (aka truth) to the court. Maryland Rule 19-303.3, Candor toward the tribunal (aka court) states:

(a) An attorney shall not knowingly:

(1) make a false statement of fact or law to a tribunal or fail to correct a false statement of material fact or law previously made to the tribunal by the attorney;

(2) fail to disclose a material fact to a tribunal when disclosure is necessary to avoid assisting a criminal or fraudulent act by the client;

(3) fail to disclose to the tribunal legal authority in the controlling jurisdiction known to the attorney to be directly adverse to the position of the client and not disclosed by an opposing attorney; or

(4) offer evidence that the attorney knows to be false. If an attorney has offered material evidence and comes to know of its falsity, the attorney shall take reasonable remedial measures.

(b) The duties stated in section (a) of this Rule continue to the conclusion of the proceeding, and apply even if compliance requires disclosure of information otherwise protected by Rule 19-301.6 (1.6).

(c) An attorney may refuse to offer evidence that the attorney reasonably believes is false.

(d) In an ex parte proceeding, an attorney shall inform the tribunal of all material facts known to the attorney which will enable the tribunal to make an informed decision, whether or not the facts are adverse.

(e) Notwithstanding sections (a) through (d) of this Rule, an attorney for an accused in a criminal case need not disclose that the accused intends to testify falsely or has testified falsely if the attorney reasonably believes that the disclosure would jeopardize any constitutional right of the accused.

Therein, attorneys are required to uphold the integrity of the judicial system. If an attorney becomes aware that a client committed perjury, they must address the situation promptly. While attorneys have a duty to maintain client confidentiality, they must also consider their obligation to a court as detailed in Md. Rule 19-303.3 above. If a client refuses to correct the perjury the attorney may need to withdraw from the case. However, this must be done in a manner that does not harm the client's interests and typically requires court approval.

Attorneys should ALWAYS advise a client about the legal implications of their actions if a client states that they intend to commit perjury and the importance of telling the truth. The attorney must not assist in presenting false evidence or furthering the client's perjury and may in some instances terminate or, if representation has not commenced- decline representation per Md Rule 19-301.16.

(a) An attorney shall inquire into and assess the facts and circumstances of each representation to determine whether the attorney may accept or continue the representation. Except as stated in section (c) of this Rule, an attorney shall not represent a client or, where representation has commenced, shall withdraw from the representation of a client if:

(1) the representation will result in violation of the Maryland Attorneys' Rules of Professional Conduct or other law; ...; or

(4) the client or prospective client seeks to use or persists in using the attorney's services to commit or further a crime or fraud, despite the attorney's discussion pursuant to Rules 19-301.2 (d) and 19-301.4 (a)(4) regarding the limitations on the attorney assisting with the proposed conduct.

(b) . . . an attorney may withdraw from representing a client if:

(1) withdrawal can be accomplished without material adverse effect on the interests of the client;

(2) the client persists in a course of action involving the attorney's services that the attorney reasonably believes is criminal or fraudulent;

(3) the client has used the attorney's services to perpetrate a crime or fraud;....

Disclosure of Confidential Information

As mentioned above, confidentiality is a cornerstone of the legal system and the attorney-client relationship. However, there are times when confidential client information is inadvertently disclosed to opposing counsel. Simply put – “Mistakes happen, even in law.” When confidential client information is disclosed, attorneys should take immediate action to address the situation and prevent additional disclosure and harm to the client.

First, the attorney should determine the nature and extent of the disclosure—what information was disclosed, who received it, and how it was disclosed. Understanding the specifics is crucial for addressing the issue effectively. The attorney must inform the affected client of the inadvertent disclosure as soon as possible. The client has the right to know what has occurred, so transparency is essential. This comports with compliance with the Maryland Rules on client communications (Md. Rule 19-301.4).

Next, the attorney should ensure that no additional disclosures occur, such as if documents are being transmitted to opposing counsel as part of a discovery request. If there is potential for further improper disclosure, take immediate actions to prevent that. If feasible, contact opposing counsel and request the return or destruction of the disclosed information. While opposing counsel may not be obligated to comply, making the request demonstrates professionalism and a commitment to confidentiality. Finally, keep detailed records of what occurred, including the nature of the information disclosed, the steps taken to notify the client, and the actions taken to mitigate the situation. This will be important if the client chooses to file a complaint with the Attorney Grievance Commission or a malpractice complaint.

What if you are the attorney who receives confidential information from opposing counsel? What are your ethical obligations? Can you use the information? Must you return the information to the attorney who inadvertently disclosed it? The answer is not clear cut.

Both the ABA Model Rules and the Maryland Rules state that the recipient of a confidential information needs to “promptly notify the sender.” ABA Model Rule 4.4(b) and Md. Rule 19-304.4(b). But neither specifically require the recipient to return or destroy the document, and neither specifically prohibit using the document. The comment to both the ABA and Maryland Rules defer to court rules or other law to determine if the material can be used. Ethics opinions from the MSBA recommend against using information that was clearly sent by mistake to opposing counsel. In practice, helping out a fellow attorney when they make a mistake will benefit you, when the “shoe is on the other foot” and you are the one making the mistake next time.

Conflicts of Interest

A conflict of interest in legal representation occurs when a lawyer’s responsibilities to one client are materially limited in some manner. One potential conflict is when the lawyer's own interests may be in conflict with the client’s interest. For example, you represent a client in a business deal

where you have a financial stake in the business deal. Client A wants to purchase Business 1. You own stock in Business 1 and therefore have a financial interest in the sale going through at a sale's price that is financially beneficial to the shareholders of Business 1, of which you are one. This is a conflict and you would need to disclose this to Client A and either a. withdraw from the representation OR b. have Client A sign a waiver (discussed below).

Another potential conflict arises when the lawyer's duties to one client are adverse to their duties to another current client. For example, you cannot represent both the plaintiff and defendant in a personal injury case. This would be a situation where you would not even be able to get a waiver. You would need to withdraw from one and potentially both representations, depending on whether or not you had confidential information that could be used against the "former" client.

A third potential conflict arises with duties to a former client. Even when a representation is complete, the attorney-client relationship remains. For example, you represented Company A in a patent dispute. Later, after the first suit has been resolved, Company B wants to hire you to represent it against Company A in a similar patent case. You would need to either withdraw or receive a waiver from Company A, which they will probably not want to give, even if they have retained another attorney.

Finally, conflicts can arise from duties to a third person (like another party or entity). For example, a lawyer is paid by a defendant's employer to represent the defendant in a sexual harassment suit. This may create loyalty issues as the lawyer is the lawyer for the defendant and not the company, even though the company is paying the fee. The lawyer cannot disclose anything to the company that the defendant-client does not agree to disclose and must follow the directions and best interests of the defendant-client and NOT the company.

This can compromise the lawyer's ability to provide loyal, independent, and effective representation. Maryland Rule 19-301.7:

A lawyer shall not represent a client if the representation involves a concurrent conflict of interest. A concurrent conflict exists if:

(1) the representation of one client will be directly adverse to another client; or (2) there is a significant risk that the representation of one or more clients will be materially limited by the lawyer's responsibilities to another client, a former client, or a personal interest.

This does not mean an attorney can never represent someone when a conflict arises or potentially arises. Like other aspects of legal ethics (i.e., attorney-client privilege), conflicts of interest can be waived.

Waiving Conflicts of Interest

A conflict can be waived by informed consent, in writing under Md. Rule 19.301.7(b), only if:

1. The lawyer reasonably believes they can provide competent and diligent representation,
2. The representation is not prohibited by law, AND
3. It does not involve representing parties on opposing sides in the same litigation.

Why does it matter whether or not a conflict may exist or requiring a waiver in writing?

1. Conflicts undermine the duty of loyalty, confidentiality, and zealous advocacy required by the rules of professional conduct. Clients need to KNOW that you as their attorney have THEIR best interests at the forefront.
2. Violating conflict rules can result in discipline, disqualification, appeals, or malpractice suits. So, a written waiver protects the attorney, the law office, and the client.

Unauthorized Practice of Law

While paralegals and other non-lawyer assistants often possess exceptional skills and a deep understanding of legal concepts—sometimes even exceeding the knowledge of the attorneys they support—their roles remain inherently limited by law. Paralegals are vital to the effective functioning of legal teams, and they often carry out complex, detail-oriented tasks that require precision and competence. However, no matter how capable a non-lawyer assistant may be, they must always operate under the direct supervision of a licensed attorney. There are certain legal tasks that only a licensed attorney is permitted to perform. When a non-lawyer steps outside those bounds, they may be engaging in the unauthorized practice of law (UPL)—a serious violation that can result in civil or even criminal penalties.

To lawfully practice law in the United States, an individual must meet specific qualifications, including earning a Juris Doctor (JD) degree from an accredited law school, passing a state bar examination, and undergoing a character and fitness evaluation that includes demonstrating “good moral character.” Only individuals who have fulfilled these requirements and been admitted to a state bar are authorized to perform legal tasks such as representing clients in court, offering individualized legal advice, or drafting original legal documents.

So, what activities cross the line into the unauthorized practice of law?

- Representing someone in court proceedings: Unless allowed by law, only a licensed attorney may enter an appearance or advocate on behalf of another person, business, organization, etc. in court.
- Offering legal advice: A non-lawyer may not answer client questions like “What should I do in my case?” or “What are my rights under this contract?” since these require legal interpretation and judgement.

- Negotiating legal settlements: Paralegals may relay offers and information to clients but may not negotiate terms on the client's behalf or as noted above, give the client legal advice regarding the pros and cons of accepting a settlement.
- Giving legal interpretation of statutes, rules, or case law: Even if a non-lawyer understands the law, explaining how it applies to a client's individual situation is prohibited.
- Establishing attorney-client relationships: Only attorneys may formally initiate or terminate a legal representation.

Notwithstanding the above, non-lawyers can perform activities for others that do not cross over the line into UPL, such as:

- Drafting legal documents ***under the supervision of an attorney***.
- Filling in blanks on pre-approved standard legal forms (e.g., real estate purchase contracts, lease agreements) as a clerical task—especially when allowed by law or custom in specific industries, such as real estate.
- Providing generalized legal information such as explaining court procedures or referring someone to public legal resources.
- Serving as a notary public, provided the individual is properly commissioned as a notary by the state.

In determining whether an action constitutes UPL, courts often assess whether the task requires legal judgement or merely involves clerical work. Additionally, charging a separate fee for document preparation (especially if it implies legal advice is included) may be an indicator that the activity goes beyond clerical assistance and into UPL territory.

It is important to note that the unauthorized practice of law restrictions do not apply to individuals who choose to represent themselves in legal matters. Under the landmark Supreme Court case *Faretta v. California*, 422 U.S. 806 (1975), criminal defendants have a constitutional right to self-representation.

[I]t is one thing to hold that every defendant, rich or poor, has the right to the assistance of counsel [under the Sixth Amendment], and quite another to say that a State may compel a defendant to accept a lawyer he does not want. The value of state-appointed counsel was not unappreciated by the Founders, yet the notion of compulsory counsel was utterly foreign to them. And whatever else may be said of those who wrote the Bill of Rights, surely there can be no doubt that they understood the inestimable worth of free choice.

Id. at 833-34.

While the *Faretta* decision focused on a defendant's rights in a criminal matter, likewise individuals may generally represent themselves in civil matters, though corporations and other entities must

typically be represented by counsel. Maryland Rule of Procedure 2-131 states “an individual may enter an appearance by an attorney or in proper person [aka pro se] and (2) a person other than an individual [aka corporation, LLC, organization, etc.] may enter an appearance only by an attorney.”

Under the Model Rules of Professional Conduct and similar state rules (such as Md. Rule 19-305.5), attorneys are ethically prohibited from assisting non-lawyers in activities that constitute the unauthorized practice of law. Lawyers who knowingly allow or encourage paralegals to perform legal work independently risk facing disciplinary action themselves.

Access to Justice Problem in U.S. and Maryland

The Access to Justice crisis in the United States—and in Maryland specifically—represents one of the most significant civil rights challenges of our time. Millions of individuals face civil legal issues such as eviction, custody disputes, consumer debt, denial of public benefits, and employment conflicts without the assistance of counsel.

While the Sixth Amendment to the U.S. Constitution guarantees the right to counsel in criminal proceedings, no comparable right exists in most civil cases, leaving many litigants vulnerable to severe consequences without legal representation. This problem is especially acute in Maryland, where the high cost of living means that even employed individuals struggle to afford an attorney. According to the Maryland Access to Justice Commission, over 60% of Marylanders appear in civil court without legal counsel, and in housing court, over 90% of tenants are unrepresented while most landlords retain attorneys.

The burden of this gap falls disproportionately on the ALICE population—those who are Asset Limited, Income Constrained and Employed—as defined by the United Way. In Maryland, approximately 39% of households are either ALICE or living below the federal poverty level. These individuals, who often work essential yet low-wage jobs as teachers, home health aides, retail workers, or delivery drivers, frequently face serious legal issues without the resources to secure representation. Without access to counsel, these litigants risk losing their homes, custody of their children, income, and personal safety, outcomes that can have devastating ripple effects for entire communities.

The lack of civil legal representation has profound systemic consequences. It results in unfair court outcomes, strains judicial resources as judges are compelled to assist pro se litigants, exacerbates social and economic inequalities, and diminishes public trust in the legal system. As Maryland's judiciary itself recognized, "meaningful access to justice is essential to maintaining the rule of law and public confidence in the legal system." (Maryland Judiciary, Access to Justice Department). Efforts to address these challenges include expanding pro bono and low bono legal services, creating court navigator programs, simplifying court procedures and forms, enacting limited right-to-counsel statutes (such as the 2020 Baltimore City's Right to Counsel in Evictions

law- Baltimore City Council bill 20-0625), and utilizing technology to assist self-represented litigants.

Lawyers have an ethical obligation to contribute to closing the justice gap. Maryland Rule 19-306, "Pro Bono Public Service," states that every lawyer has a professional responsibility to render pro bono legal services. Specifically, Maryland lawyers are encouraged to provide at least fifty hours of pro bono legal services per year to individuals of limited means, to organizations seeking to secure or protect civil rights, to charitable organizations designed to address the needs of persons with limited means, among other similar areas. Although aspirational rather than mandatory, this rule reflects the profession's deep commitment to access to justice as a core value. Failure to address these needs not only harms individual litigants but undermines the legitimacy of the entire judicial process.

Moreover, pro bono and low bono service (aka reduced fee) promotes fairness in adversarial proceedings. The American legal system is predicated on the notion that justice best emerges when both sides are vigorously represented. Without representation, litigants are often unable to navigate complex procedural requirements, resulting in case dismissals, default judgments or other adverse outcomes. For example, in Maryland's District Court landlord-tenant docket, unrepresented tenants are far more likely to be evicted than those with counsel. Public Justice Center, "Justice Diverted: How Renters Are Processed in the Baltimore City Rent Court," 2015. In contrast, studies have shown that tenants represented by attorneys are far more successful in avoiding eviction or negotiating better terms.

Pro bono service also benefits lawyers professionally. It offers younger attorneys valuable courtroom experience, enhances advocacy skills, and provides opportunities to develop expertise in substantive areas of law outside their primary practice. In Maryland, organizations like the Pro Bono Resource Center provide structured opportunities for attorneys to engage in meaningful service while expanding their professional networks.

Furthermore, it is critical to recognize that ethical representation must extend even to unpopular or disfavored clients. Upholding the rights of the marginalized and reviled is essential to maintaining the integrity of the justice system. Under Md. Rule 19-301.2(b), a lawyer's representation of a client "does not constitute an endorsement of the client's political, economic, social, or moral views or activities." Historic examples underscore the point: John Adams's defense of British soldiers charged in the Boston Massacre demonstrated a lawyer's duty to ensure that every defendant receives a fair trial, regardless of public sentiment. In more recent times, Judy Clarke, a criminal defense attorney, represented Ted Kaczynski (the Unabomber), Eric Rudolph (1996 Olympic Park bomber), Dzhokhar Tsarnaev (Boston Marathon bomber), Zacarias Moussaoui (9/11 terrorist attack), and Susan Smith (drowned her children (3 yr old and 1 yr old) by strapping them into their car seats and driving her car into a lake, then claimed they were kidnapped by a black man).

Finally, protecting the right to counsel even for unpopular clients ensures that fundamental constitutional protections—due process, equal protection, the right to a fair trial—remain robust.

As history has shown, causes initially deemed unpopular often come to be recognized as foundational to justice. By defending all clients zealously within the bounds of the law, lawyers not only honor their ethical obligations but strengthen democracy itself.

In sum, the Access to Justice crisis in Maryland and beyond demands a collective response from the legal community. Through pro bono service, low bono innovation, and the courageous defense of all clients—popular or not—lawyers fulfill their highest professional ideals and safeguard the principle that justice must be available to all, not merely to those who can afford it.